

TWENTY-FOURTH NORTHERN MARIANAS COMMONWEALTH
LEGISLATURE
IN THE HOUSE OF REPRESENTATIVES

Session, 2026

H. J. R. 24-20

A HOUSE JOINT RESOLUTION

To approve the Governor's request to exempt and fill a critical and vacant personnel position within the Executive Branch, specifically for the Bureau of Environmental and Coastal Quality (BECQ), pursuant to Public Law 24-20, Section 602(a).

1 **WHEREAS,** the Twenty-Fourth Northern Marianas Commonwealth
2 Legislature enacted Public Law 24-20, also known as the Revised Appropriations
3 and Budget Authority Act of 2026; and

4 **WHEREAS,** Section 602(a) of Public Law 24-20 mandates a freeze on
5 filling new or vacant positions within the Executive Branch, except for positions
6 essential to the delivery of public services; and

7 **WHEREAS,** Section 602(a) provides a mechanism to exempt critical
8 vacancies from this freeze upon the formal determination and certification of the
9 Governor, subject to approval by the Legislature via a joint resolution; and

10 **WHEREAS,** the Bureau of Environmental and Coastal Quality (BECQ) is
11 responsible to implement and enforce the Commonwealth Litter Control Act of
12 1989, as amended, codified at 2 CMC §§ 3411-3416, and to ensure that the
13 responsibilities assigned to the Division of Environmental Quality (DEQ) under the

1 Act continue to be carried out effectively; The Litter Control Program is an
2 important component of the Commonwealth's environmental protection and public
3 health responsibilities; DEQ is responsible for enforcement of the Litter Control
4 Act, public education and outreach, and the training and certification of Litter
5 Control Apprehending Officers from participating government agencies; and

6 **WHEREAS**, the need for this position has become increasingly important
7 due to the continuing challenges associated with illegal dumping, littering, post-
8 disaster debris, construction waste, and the improper disposal of solid waste
9 throughout the Commonwealth; Effective enforcement requires dedicated
10 personnel who can investigate complaints, conduct field inspections and patrols,
11 document violations, identify responsible parties, coordinate with other
12 enforcement agencies, issue or support citations and enforcement actions, and
13 prepare cases for further administrative or legal action; and

14 **WHEREAS**, the requested position is also necessary to support the
15 coordinated enforcement responsibilities of the Commonwealth's various agencies
16 participating in the Litter Control Program; Without adequate DEQ personnel
17 dedicated to this function, enforcement becomes largely complaint-driven and the
18 Commonwealth's ability to investigate violations and hold violators accountable is
19 significantly reduced; and

20 **WHEREAS**, leaving the position of Litter Control Officer vacant directly
21 compromises the Commonwealth's ability to enforce anti-littering laws, address

1 illegal dumping sites, and mitigate environmental degradation across our public
2 lands and coastal areas; and

3 **WHEREAS**, through Governor's Communication 24-184, the Governor
4 has formally certified to the Legislature that the vacant Litter Control Officer
5 position within the Division of Environment Quality, Bureau of Environmental and
6 Coastal Quality is essential for the delivery of public services; and

7 **WHEREAS**, the Legislature finds that maintaining dedicated personnel to
8 enforce waste management and litter controls is vital to public health, the
9 preservation of our natural ecosystems, and the aesthetic integrity of the CNMI's
10 tourism-driven economy; and

11 **NOW, THEREFORE, BE IT RESOLVED**, by the House of
12 Representatives of the Twenty-Fourth Northern Marianas Commonwealth
13 Legislature, the Senate concurring, that the following personnel is essential for the
14 delivery of public service and approved by the Legislature:

15 1 Litter Control Officer, DEQ, BECQ

16 **BE IT FURTHER RESOLVED**, that the Speaker of the House of
17 Representatives and the President of the Senate shall certify and the House Clerk
18 and the Senate Legislative Secretary shall attest to the adoption of this joint
19 resolution and thereafter the House Clerk shall transmit a copy to Floyd R. Masga,
20 Administrator, Bureau of Environmental and Coastal Quality; Natalia M. Sablan,
21 Acting Secretary, Department of Finance; Virginia C. Villagomez, Special

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- 1 Assistant, Office of Management and Budget; Joseph M. Pangelinan, Director,
- 2 Office of Personnel and Management; and the Honorable David M. Apatang,
- 3 Governor, Commonwealth of the Northern Mariana Islands.

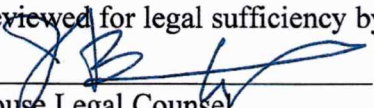
Prefiled: 9/27/2026

Date: _____

Introduced by: _____


Rep. John Paul P. Sablan

Reviewed for legal sufficiency by:


House Legal Counsel

Date: _____